

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF J. LEE HILL

I, J. Lee Hill, declare as follows:

1. I am an associate of the law firm Huth Reynolds LLP (“HR LLP”), which has served as counsel of record for Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”) since this action was filed.
2. I submit this Declaration in support of Complainant’s (1) Motion for Permission to File Proposed Verified First Amended Complaint Against Respondents (the “Motion to Amend”) and (2) Motion Challenging Respondents’ Confidentiality Designation of Certain Documents (the “Motion Challenging Confidentiality Designation” and, together with the Motion to Amend, the “Motions”), filed contemporaneously herewith.
3. Pursuant to the Protective Order entered by the Presiding Officer in this case on July 28, 2023 (the “Protective Order”), and in order to facilitate the public filing of the proposed Verified First Amended Complaint (the “FAC”), Complainant’s counsel sought in good faith to meet and confer with counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, together with Complainant, the “Parties”) regarding Respondents’ designation as Confidential or Attorneys Eyes Only of certain documents

relied upon in the proposed FAC from Respondents' production of documents in discovery in this proceeding (the "Subject Documents").

4. The relevant email correspondence between the Parties' respective counsel in connection with the Motions is attached hereto as Exhibit 1.

5. On June 12, 2024, Complainant's counsel sent Respondents' counsel an unverified draft of the proposed FAC in connection with a request that Respondents change or withdraw the confidentiality designations of the Subject Documents. *See* Ex. 1 at 3–4.

6. Complainant's efforts, however, were rebuffed. On June 18, 2024, Respondents' counsel declined to meet and confer with Complainant, instead replying that "OOCL intends to oppose the motion and does not agree to waive the Confidential and/or AEO designations on the documents [Complainant has] cited or quotes included in the draft amended complaint." *Id.* at 2.

7. On July 2, 2024, Complainant's counsel sent Respondents' counsel an updated unverified draft of the proposed FAC adding a limited number of additional allegations in the FAC based on the Subject Documents and asked Respondents' counsel if Respondents would take the same position stated in their counsel's June 18, 2024 email. *See id.* at 1–2.

8. Later that same day, Respondents' counsel confirmed in response that Respondent would "take the same position set forth in [their] email of June 17" and reiterated that Respondent "intends to oppose the motion and does not agree to waive the Confidential and/or AEO designations on the documents you've cited or quotes included in the draft amended complaint." *Id.* at 1.

To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct. Executed on July 8, 2024.



J. Lee Hill

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

Lauren B. Wilgus
Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Lauren.Wilgus@BlankRome.com
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: July 8, 2024

A handwritten signature in black ink, appearing to read "Lee Hill", written over a horizontal line.

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*